

From: [Porter, Cassandra \(DEQ\)](#)
To: zmiller@google.com
Cc: [Taryn Payne](#); [Julie S. Hamilton \(julie.s.hamilton@usace.army.mil\)](mailto:julie.s.hamilton@usace.army.mil); [MRC - jpa Permits](#)
Subject: 26-0171 Project Loch: Additional Information Request
Date: Wednesday, February 18, 2026 5:59:37 PM
Attachments: [Outlets - summary.png](#)
[2026-02-19-26-0171-Additional-Information-Request.pdf](#)
[Single and complete worksheet.docx](#)
[Property access agreement.docx](#)

Good evening,

Please see attached for an additional information request (including property access agreement and single and complete worksheet) for the Project Loch project (JPA No. 26-0171) proposed in Chesterfield County, Virginia. Please let me know if you have any questions.

Respectfully,



Cassie Porter

VWPP Permit Writer and Inspector, PRO/Water

[Virginia Department of Environmental Quality](#)

4949-A Cox Road, Glen Allen, VA 23060

804-814-7234



Commonwealth of Virginia

VIRGINIA DEPARTMENT OF ENVIRONMENTAL QUALITY

www.deq.virginia.gov

David L. Bulova
Secretary of Natural and Historic Resources

Michael S. Rolband, PE, PWD, PWS Emeritus
Director

February 18, 2026

Zach Miller
Google, LLC
251 Little Falls Dr
Wilmington, DE 19808

SENT VIA EMAIL: zmiller@google.com

Re: Joint Permit Application No. 26-0171
Project Loch, Chesterfield County, Virginia
Additional Information Request Letter

Dear Zach Miller:

On February 3, 2026, the Virginia Department of Environmental Quality (DEQ) received your application signed January 22, 2026 for the above-referenced project. DEQ is evaluating your application for a Virginia Water Protection (VWP) individual permit in accordance with VWP Permit Program Regulation 9VAC25-210-10 *et seq.* The following information is required to complete your application:

1. Please complete and submit the attached Property Access Agreement for all property owners.
2. In accordance with 9VAC25-210-80.B.1.a, the Virginia SCC Clerk's Information System lists the applicant principle office address as 1600 Amphitheatre Parkway, Mountain View, CA 94043, which differs from the address listed in the application. Please confirm the correct address for the applicant.
3. In accordance with 9VAC25-210-80.B.1.m, a compensatory mitigation plan to achieve no net loss of wetland acreage and functions or stream functions and water quality benefits. Please provide the following information when the full compensatory mitigation plan is ready for submission:
 - a. If permittee-responsible compensation is proposed for wetland impacts, a conceptual wetland compensatory mitigation plan shall be submitted in order for an application to be deemed complete and shall include at a minimum (i) the goals and objectives in terms of replacement of wetland acreage and functions; (ii) a detailed location map including latitude and longitude to the nearest second and the fourth order subbasin, as defined by the hydrologic unit boundaries of the National

Received by VMRC February 19, 2026 / Ira

Watershed Boundary Dataset, at the center of the site; (iii) a description of the surrounding land use; (iv) a hydrologic analysis including a draft water budget for nontidal areas based on expected monthly inputs and outputs that will project water level elevations for a typical year, a dry year, and a wet year; (v) groundwater elevation data, if available, or the proposed location of groundwater monitoring wells to collect these data; (vi) wetland delineation confirmation, data sheets, and maps for existing surface water areas on the proposed site or sites; (vii) a conceptual grading plan; (viii) a conceptual planting scheme including suggested plant species and zonation of each vegetation type proposed; (ix) a description of existing soils including general information on both topsoil and subsoil conditions, permeability, and the need for soil amendments; (x) a draft design of water control structures; (xi) inclusion of buffer areas; (xii) a description of any structures and features necessary for the success of the site; (xiii) the schedule for compensatory mitigation site construction; and (xiv) measures for the control of undesirable species.

- b. If permittee-responsible compensation is proposed for stream impacts, a conceptual stream compensatory mitigation plan shall be submitted in order for an application to be deemed complete and shall include at a minimum (i) the goals and objectives in terms of water quality benefits and replacement of stream functions; (ii) a detailed location map including the latitude and longitude to the nearest second and the fourth order subbasin, as defined by the hydrologic unit boundaries of the National Watershed Boundary Dataset, at the center of the site; (iii) a description of the surrounding land use; (iv) the proposed stream segment restoration locations including plan view and cross-section drawings; (v) the stream deficiencies that need to be addressed; (vi) data obtained from a DEQ-approved, stream impact assessment methodology such as the Unified Stream Methodology; (vii) the proposed restoration measures to be employed including channel measurements, proposed design flows, types of instream structures, and conceptual planting scheme; (viii) reference stream data, if available; (ix) inclusion of buffer areas; (x) schedule for restoration activities; and (xi) measures for the control of undesirable species.
- c. For any permittee-responsible compensatory mitigation, the conceptual compensatory mitigation plan shall also include a draft of the intended protective mechanism or mechanisms, in accordance with 9VAC25-210-116 B 2, such as, but not limited to, a conservation easement held by a third party in accordance with the Virginia Conservation Easement Act (§ 10.1-1009 et seq. of the Code of Virginia) or the Virginia Open-Space Land Act (§ 10.1-1700 et seq. of the Code of Virginia), a duly recorded declaration of restrictive covenants, or other protective instrument. The draft intended protective mechanism shall contain the information in subdivisions (a), (b), and (c) of this subdivision B 1 m (3) or in lieu thereof shall describe the intended protective mechanism or mechanisms that contain or contains the information required as follows:

- i. A provision for access to the site

- ii. The following minimum restrictions: no ditching, land clearing, or discharge of dredge or fill material, and no activity in the area designated as compensatory mitigation area with the exception of maintenance; corrective action measures; or DEQ-approved activities described in the approved final compensatory mitigation plan or long-term management plan; and
 - iii. A long-term management plan that identifies a long-term steward and adequate financial assurances for long-term management in accordance with the current standard for mitigation banks and in-lieu fee program sites, except that financial assurances will not be necessary for permittee-responsible compensation provided by government agencies on government property. If approved by DEQ, permittee-responsible compensation on government property and long-term protection may be provided through federal facility management plans, integrated natural resources management plans, or other alternate management plans submitted by a government agency or public authority.
- 4. In accordance with 9VAC25-210-80.B.1.h, the impact map depicts palustrine unconsolidated bottom (PUB) that are not included in the narrative impact description. Please update this description to reflect proposed impacts to all surface waters onsite.
- 5. In accordance with 9VAC25-240-80.B.1.h, please provide a copy of the approved jurisdictional determination when available, or when unavailable, (i) the preliminary jurisdictional determination from the U.S. Army Corps of Engineers (USACE), U.S. Department of Agriculture Natural Resources Conservation Service (NRCS), or DEQ or (ii) other correspondence from the USACE, NRCS, or DEQ indicating approval of the boundary of applicable jurisdictional surface waters, including wetlands data sheets if applicable.
 - a. DEQ has received the State Surface Water Determination request for the proposed project and is currently awaiting correspondence from the agent and USACE in order to schedule a joint site visit.
- 6. In accordance with 9VAC25-210-80 B.1.h, please list which specific proposed impact areas are planned to include a culvert installation.
- 7. In accordance with 9VAC25-210-80.B.1.g, please provide the following information related to the project alternatives analysis:
 - a. Can stormwater management be achieved through alternative design methods, which would result in a reduced overall project footprint, and thus afford avoidance and minimization of surface water impacts? Provide a discussion of stormwater management Environmental Site Design (or “Low Impact Development”) techniques explored during the design process, and detail the reason(s) the applicant determined less damaging alternatives cannot practicably be achieved through

- available stormwater management technology and design applications. Is an underground detention system an option for the proposed development that would reduce surface water impacts?
- b. Table 1: Criteria Evaluated for Offsite Alternatives includes additional criteria not listed in the narrative description of what was considered when identifying the preferred alternative. Please update/confirm the narrative description for this section.
 - c. Please note that a site evaluated as an offsite alternative needs to meet the project purpose and need in order to be considered a viable alternative under DEQ review. If any of the presented offsite alternatives in the submitted application do not meet the proposed purpose and need of the project (e.g. sufficient developable land) please update this section with additional alternatives considered.
 - d. Please note that DEQ does not consider zoning as a factor in alternative analysis evaluation.
 - e. Offsite Alternative 2 “Dragway Site” is described as only having 70 acres that are considered developable. What about the remaining site acreage makes it insufficient for development?
 - f. How many contiguous developable acres are needed in order to support the project purpose and need?
 - g. Please explain what would be required to obtain a Provisional Use Permit and why this would contribute to an offsite alternative not supporting the project purpose and need.
 - h. Please explain how secondary impacts to surface waters will be avoided.
 - i. Please provide a pre- and post-development point analysis of hydrologic inputs to the avoided intermittent stream channel immediately downstream of Impacts 23 and 24 (and the various impact areas surrounding/between 24 and 23) demonstrating sufficient maintenance of hydrologic inputs post-development. Such analysis(es) are to be conducted at the point at which the avoided system’s hydrologic input occurs post-development; and shall include comparative (pre- vs. post-development) total volumes of input on a continual, 1-year storm, 2-year storm, and 10-year storm basis. Should measurable changes in hydrologic input (on a total volume-basis) to avoided state surface waters occur post-development, such situations will be evaluated for secondary impacts to the surface waters in question.
8. In accordance with 9VAC25-210-80.B.1.f, please provide the following information related to the project purpose and need:
- a. Explain what the application is referencing in listing “other data-intensive applications”
 - b. The application discusses the economic benefit the project poses to the locality. Does this specific project align with Chesterfield County’s Economic Development Plan? Please explain.

- c. The application states the “influx of funds provides direct economic benefit to the county residents through infrastructure upgrades, new schools, and expanded municipal services that otherwise would not be possible.” Are there currently specific examples of any of these benefits that have occurred related to the proposed project? Does the applicant have examples from comparable data center projects to supplement this?
 - d. Please provide the approximate square footage of each proposed substation – are they included in the estimated 300,000 square footprint of each data center building?
 - e. Does the local power grid currently have the capacity to support the utility demands of the proposed project?
 - f. Please complete the enclosed Single and Complete worksheet and provide supplemental narrative responses where necessary for the proposed project.
 - g. Will coolant water be necessary? If so, where and how will it be sourced and discharged?
 - h. Verify that all temporary and permanent impacts for utilities are included in the application. Will temporary power be necessary during the construction of the data center campus? Where will the temporary power lines be located?
9. In accordance with 9VAC25-210-80.B.1.e, please provide the following information for the proposed permittee-responsible mitigation site:
- a. The physical street address, nearest street, or nearest route number; city or county; zip code; and if applicable, parcel number of the site or sites.
 - b. Name of the impacted water body or water bodies, or receiving waters, as applicable, at the site or sites.
 - c. The latitude and longitude to the nearest second at the center of the site or sites.
 - d. The fourth order subbasin, as defined by the hydrologic unit boundaries of the National Watershed Boundary Dataset, for the site or sites.
 - e. A detailed map depicting the location of the site or sites, including the project boundary and existing preservation areas on the site or sites. The map (e.g., a U.S. Geologic Survey topographic quadrangle map) should be of sufficient detail to easily locate the site or sites for inspection.
10. In accordance with 9VAC25-210-80.B.1.d, please provide the estimated project schedule.
- a. Are there plans to construct the proposed project in phases? If so, please provide a description of which components are planned to be built for each phase, as well as an estimated timeline for phase completion.
11. A permit application fee is required to complete the application and continue noticing the draft permit. Once the proposed impact information has been determined, DEQ will notify you of the fee amount.

Google, LLC
JPA No. 26-0171
February 18, 2026
Page 6 of 6

The 120-calendar day processing period for a VWP individual permit will not commence until a complete application is received in accordance with VWP Permit Program Regulation 9VAC25-210-10 *et seq.* DEQ requests that you respond by March 5, 2026, so that DEQ can continue to process your application. Please be advised that upon receipt of the requested information, additional information may still be required for DEQ to reach a permit decision.

Please note that this project appears to require compensatory mitigation based on the information provided in the application. If the purchase of mitigation credits is required, credit prices are derived by individual mitigation bank sponsors, not DEQ, and are subject to market fluctuations. Applicants should inquire with any approved mitigation banks or in-lieu fee programs in the watershed in which impacts are proposed to determine the availability and current price of mitigation credits. DEQ also encourages applicants to avoid and minimize impacts as much as possible, which may ultimately affect the amount of mitigation required and thus the cost of mitigating those impacts. Mitigation banking information can be found on the U.S. Army Corps of Engineers' RIBITS website (<https://ribits.ops.usace.army.mil/>), or through a general internet search.

Thank you for your cooperation in this matter. Please contact DEQ at pro.vwpcpliance@deq.virginia.gov or 804-527-5020 (PRO) if you have any questions.

Respectfully,



Cassaundra Porter
VWP Permit Writer/Inspector
Cell: 804-814-7234
Cassaundra.porter@deq.virginia.gov
Piedmont Regional Office
4949-A Cox Road
Glen Allen, VA 23060
Office: 804-524-5020

Enclosure(s): Property Access Agreement; Single and Complete Worksheet

cc: Taryn Payne, Timmons Group
Julie Hamilton, U.S. Army Corps of Engineers
jpa.permits@mrc.virginia.gov

Received by VMRC February 19, 2026 / Ira

Virginia Water Protection Permit Program Property-Access Agreement

[PROPERTY OWNER NAME(S) – must include ALL] (“Owner”) who own[s] the property located at **[ADDRESS and/or DEED BOOK INFORMATION and/or TAX PARCEL #]** (“Property”) hereby authorizes the Department of Environmental Quality, its employees, agents, and contractors (“Authorized Parties”) the right of entry to the Property to conduct inspections necessary to evaluate the application for and ensure compliance with **26-0171** (“VWP Permit”). For the purpose of this section, the time for inspection shall be deemed reasonable during regular business hours. Nothing contained herein shall make an inspection time unreasonable during an emergency.

Inspections may include but are not limited to the following activities:

1. Enter upon the property, and have access to, inspect and copy any records that required as part of the VWP permit;
2. Inspect any facilities, operations or practices (including monitoring and control equipment) regulated or required under the VWP permit; and
3. Sample or monitor any substance, parameter, or activity for the purpose of ensuring compliance with the VWP permit or as otherwise required by law.

The Owner understands that access to the Property is a requirement pursuant to 9VAC25-210-90 and the VWP Permit. The DEQ may enforce the provisions of this agreement utilizing all applicable procedures and authorities under Va. Code §§ 62.1-44.15 and 10.1-1186.

Property Owner Name (Print)	Property Owner Signature	Title	Date
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[Include Title for owners who are not individual persons.]

[Insert additional signature lines for each individual owner listed on property record.]

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Single and Complete Worksheet

Please complete the below table to aid in the determination if the project is single and complete.

As defined in 9VAC25-210-10, a “Single and complete project” means the total project proposed or accomplished by a person, which also has independent utility as defined in this section. For linear projects, the single and complete project (e.g., a single and complete crossing) will apply to each crossing of a separate surface water (e.g., a single water body) and to multiple crossings of the same water body at separate and distinct locations. Phases of a project that have independent utility may each be considered single and complete.

“Independent utility” means a test to determine what constitutes a single and complete project. A project is considered to have independent utility if it would be constructed absent the construction of other projects in the project area. Portions of a phased development project that depend upon other phases of the project do not have independent utility. Portions of a phased development project that would be constructed even if the other phases are not built can be considered as separate single complete projects with independent public and economic utility.

Project Name:		
JPA No. (if applicable):		
Single and Complete Items	YES	NO
1. Does the project rely on the infrastructure (utilities, stormwater, roadways) of an adjacent project?		
2. Does the economic viability of the project rely on future or existing development that will impact or has impacted surface waters?		
3. Does the project depend on the impacts authorized under another closely related permit?		
4. Is the project part of the zoning for a larger parcel?		
5. Do other portions of the larger parcel have or require a VWP Permit?		
6. Is the project related to another permitted project through proffers?		
7. Is the project part of phased subdivision or development?		
8. Are the projects owned by the same owner/developer or partnership or other association of owners/developers? 8a. If yes, when was the parcel purchased in relationship to other property.		
If you responded Yes to any of the above questions, provide an accompanying narrative.		
If the project is related to another project, please provide the project's name(s) and permit number(s) (if applicable):		
Other:		
Can this project be considered single and complete from other related projects? Explain		
Do the impacts associated with this project need to be considered cumulative with the related projects? If yes, what projects?		